

TENTATIVE RULING(S) FOR June 15, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2528167

DOE vs CITY OF RIALTO

TENTATIVE RULING(S):

Before the Court is Plaintiff's Motion to Compel Compliance with Subpoena Directed to Non-Party Rialto Police Department (Motion), supported by a Separate Statement and a declaration from Cristina J. Nolan. The City of Rialto (the City) filed its Opposition to the Motion (Opposition) on June 2, 2026, supported by a declaration from Brian S. Ginter. Plaintiff filed his Reply on June 8, 2026.

II.

ANALYSIS AND RULING

As the Civil Discovery Act applies to this case, Penal Code section 293 and the rules governing criminal discovery do not apply. (*People v. Dixon* (2007) 148 Cal.App.4th 414, 442) (*Dixon*). Under the Civil Discovery Act, "... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, ... Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, ..." (Code Civ. Proc., § 2017.010.) The City does not advance any other arguments for failing to disclose the subject information other than the restrictions set forth under Penal Code section 293 and it is not clear that other such justifications exist. As set forth in *Dixon*, a simple request for witnesses' contact information cannot be presumed to burden the other party or harass the witnesses. (*Dixon, supra*, 148 Cal.App.4th at p. 443.) Accordingly, the Court GRANTS Plaintiff's request to compel the Rialto Police Department to comply with the subject subpoena.